Execution Version

AMENDED AND RESTATED LIMITED LIABILITY COMPANY AGREEMENT OF NORTHGATE FL MHC, LLC

THIS AMENDED AND RESTATED LIMITED LIABILITY COMPANY AGREEMENT (this "**Agreement**") of NORTHGATE FL MHC, LLC, a Delaware limited liability company (the "**Company**"), is entered into effective as of the 30th day of July 2025 by PARAKEET PROPERTY OWNER II, LLC, a Delaware limited liability company and the sole member of the Company (the "**Member**").

RECITALS

WHEREAS, the Company is currently governed by a Limited Liability Company Agreement, dated as of June 2, 2025 (the "**First LLC Agreement**"), in accordance with the provisions of the Florida Revised Limited Liability Company Act (§605.0101, *et seq*., Fla. Stat.) (as amended on June 10, 2025, when an Articles of Amendment to Articles of Organization was filed with Florida Department of State, Divisions of Corporations amending the authorized member, and any corresponding provisions of succeeding law, the "**Florida Act**"), on June 2, 2025, when its Certificate of Formation (the "**Certificate**") was filed with the Florida Department of State, Divisions of Corporations.

WHEREAS, pursuant to that certain Loan Agreement, dated as of May 2, 2025 (as amended, modified, restated, supplemented, or extended from time to time, the "**Loan Agreement**"), by and between WSFB Lender II, L.P., a Delaware limited partnership (together with its successors and assigns, "**Lender**"), as lender, and the Member, as borrower, Lender made available to Member, a loan in the principal amount of $67,535,000.00 (the "**Existing Loan**");

WHEREAS, pursuant to that certain First Omnibus Amendment to Loan Documents, dated as of the date hereof, (the "**Amendment**"), by and between Lender and the Member, Lender has agreed to increase the Existing Loan by an aggregate maximum principal amount of up to [$19,550,000.00] (the "**Additional Loan Amount**");

WHEREAS, in connection with the Loan, the Company together with certain of its affiliates, have entered into that certain First Amended and Restated Payment Guaranty, dated as of the date hereof, in favor of Lender (the "**Payment Guaranty**"). The Payment Guaranty, the Loan Agreement and all other documents and agreements evidencing or securing the Loan, shall collectively be referred to as the "**Loan Documents**" (capitalized terms used but not otherwise defined herein shall have their respective meanings in the Loan Agreement); and

WHEREAS, in connection with the closing of the transactions contemplated by the Loan Documents, the Member desires to enter into this Agreement in accordance with the Act, which will amend and restate the First LLC Agreement in its entirety and govern the affairs of the Company and the conduct of its business.

NOW, THEREFORE, the Member, by execution of this Agreement, hereby agrees as follows:

ARTICLE I
FORMATION OF COMPANY

1.1 Name. The name of the Company is Northgate FL MHC, LLC.

1.2 Formation. The Company was previously formed as a Florida limited liability company under the name "Northgate FL MHC, LLC" (the "**Converting Company**") on June 2, 2025, under the Florida Act. Effective as of July 3, 2025 (the "**Conversion Date**"), the Converting Company converted from a Florida limited liability company to a Delaware limited liability company pursuant to and in accordance with the Delaware Limited Liability Company Act (6 Del. C. § 18-101 et seq.), as amended from time to time (the "**Delaware Act**"), when its Certificate of Conversion and the Certificate of Formation were filed with the Secretary of State of the State of Delaware (the "**Conversion**"). The Member, by execution of this Agreement, hereby continues the Company as a limited liability company pursuant to and in accordance with the Delaware Act and this Agreement.

1.3 Principal Place of Business. The principal office of the Company shall be at such place or places as the Manager may designate from time to time.

1.4 Registered Office and Registered Agent. The name and address of the registered agent of the Company for service of process on the Company in the State of Delaware is Corporation Service Company, 251 Little Falls Drive, Wilmington, Delaware 19801. The Manager may change the registered office and registered agent of the Company in the State of Delaware.

1.5 Limited Liability; Defects as to Formalities. The debts, obligations and liabilities of the Company, whether arising in contract, tort or otherwise, shall be the debts, obligations and liabilities solely of the Company, and neither the Member nor the Manager shall be obligated personally for any such debt, obligation or liability of the Company solely by reason of being a member or manager of the Company. A failure to observe any formalities or requirements of this Agreement, the Certificate, or the Act shall not be grounds for imposing personal liability on the Member or the Manager for the liabilities of the Company.

ARTICLE II
BUSINESS OF COMPANY

2.1 Notwithstanding any provision of this Agreement to the contrary, the nature of the business and of the purposes to be conducted and promoted by Company is to engage solely in the following activities:

(a) To acquire and own the real property, together with all improvements thereon, located at: 3309 2nd Avenue; 3250 Highway 1 and 3277 1st Avenue, all in the City of Mims, County of Brevard, State of Florida (Parcel Numbers: 21-35-06-00-509, 21-35-06-00-521, 21-35-06-00-797, 21-35-06-00-513, 21-34-01-00-1, 21-35-06-00-279, 21-35-06-00-285, and 21-35-06-00-280) (collectively, the "**Property**"), and incidental personal property necessary or convenient for the ownership or operation of the Property;

(b) To own, hold, sell, assign, transfer, operate, lease, mortgage, pledge and otherwise deal with the Property interest therein;

(c) To perform its obligations under the Payment Guaranty and the other Loan Documents;

(d) To exercise all powers permitted to limited liability companies organized under the laws of the State of Delaware necessary or convenient to the conduct, promotion or attainment of the business or purposes otherwise set forth herein; and

(e) Notwithstanding the foregoing, so long as the Loan remains outstanding and except as expressly permitted under the Loan Documents, the Company shall not engage in any Transfer without the prior written consent of the Lender.

2.2 Brian Ashin, as an "authorized person" within the meaning of the Act, has executed, delivered and filed the Conversion with the Secretary of State of the State of Delaware, such filing being hereby ratified and approved in all respects. Upon the execution of this Agreement by the Member, his powers as an "authorized person" ceased, and the Member thereupon became the designated "authorized person" and shall continue as the designated "authorized person" within the meaning of the Act.

2.3 The existence of the Company as a separate legal entity shall continue until cancellation of the Certificate as provided in the Act.

ARTICLE III
MEMBER, CAPITAL CONTRIBUTION AND MANAGEMENT

3.1 Sole Member. Parakeet Property Owner II, LLC, a Delaware limited liability company having a business address of c/o Parakeet Communities, 10221 River Road 59831, Potomac, Maryland 20859, as the sole Member, owns one hundred percent (100%) of the limited liability company interests (the "**LLC Interest**") in the Company, including all rights to distributions, capital and allocations of income and loss in the Company and all rights as a member under this Agreement, the Certificate, and the Act. The Member was admitted as a member of the Company upon its execution of a counterpart signature page to this Agreement.

3.2 Contributions. The Member is deemed to have contributed to the Company property of an agreed value as listed on the Company's books and records. The Member shall make such additional contributions to capital as the Member may determine in the sole discretion of the Member at any time and from time to time. Notwithstanding anything to the contrary in this Agreement, the Member shall have no obligation to make any capital contribution at any time. No interest shall accrue on any capital contribution. The Member may withdraw or be repaid any capital contribution as the Member may determine from time to time in the sole discretion of the Member.

3.3 Management.

(a) Except as otherwise expressly provided in this Agreement, the management and control of the Company shall be vested exclusively in one or more managers (each, a

"**Manager**" and, collectively, the "**Managers**") appointed by the Member. The Member hereby appoints Parakeet HoldCo II, LLC, as the initial Manager. The Member may remove any Manager at any time with or without cause. The Manager shall have exclusive and complete authority and discretion to manage the operations and affairs of the Company and to make all decisions regarding the business of the Company except in regard to Material Actions. As used in this Agreement, "**Material Actions**" means (i) the dissolution of the Company, (ii) the admission of any additional member to the Company, (iii) amending this Agreement or the Certificate, (iv) taking any action that expressly requires the consent of the Member or is expressly reserved to the Member under this Agreement, and (v) any action designated as a Material Action under the Limited Liability Company Agreement of the Member (as amended or amended and restated from time to time). Material Actions require the approval of the Member.

(b) Persons dealing with the Company are entitled to rely conclusively on the power and authority of the Manager(s) as set forth in this Agreement. The Manager(s) shall have all rights and powers of a manager under the Act, and shall have such authority, rights and powers in the management of the Company to do any and all other acts and things necessary, proper, convenient or advisable to effectuate the purposes of this Agreement.

3.4 Limitations on the Company's Activities. So long as the indebtedness of the Company, under or in connection with the Loan Documents or any related document is outstanding:

(a) The Company shall be and will remain at all times a Single Purpose Entity, as defined on Schedule 3.4(a) attached hereto and by this reference made a part hereof; and

(b) The Member shall not amend, alter, or change this Section 3.4 or Schedule 3.4(a) without Lender's prior written consent.

3.5 Officers. The Manager may designate and appoint officers (each an "**Officer**") and delegate duties to such Officers, at any time and from time to time in the discretion of the Manager, and to the extent permitted under the Act. The duties and authority of any Officer shall be limited to those expressly granted by the Manager. All Officers serve at the discretion of, and may be removed at any time with or without cause by, the Manager. The Manager, in its sole discretion, shall determine the compensation of any Officers.

3.6 Limited Liability. Except as otherwise expressly provided by the Act, neither the Member nor the Manager shall have any personal liability merely as a member or manager of the Company for any liabilities or losses of the Company beyond the Member's or the Manager's contributions to the Company. Additionally, except as otherwise expressly provided by the Act, the debts, obligations and liabilities of the Company, whether arising in contract, tort or otherwise, shall be the debts, obligations and liabilities solely of the Company, and neither the Member nor any Officer or employee of the Company shall be obligated personally for any such debt, obligation or liability of the Company solely by reason of being a member, officer or employee of the Company.

3.7 Indemnification. The Company shall indemnify the Member and the Manager for all costs, losses, liabilities, and damages paid or accrued by the Member and/or the Manager in

connection with the business of the Company, all to the fullest extent provided or allowed by the laws of the State of Delaware. The Manager may, in the sole discretion of the Manager, also cause the Company to indemnify any or all Officers, employees or agents of the Company for all costs, losses, liabilities and damages paid or accrued by the Officer, agent or employee in connection with the business of the Company to the fullest extent provided or allowed by the laws of the State of Delaware.

3.8 Reserved.

3.9 Manager Transacting Business with the Company. The Manager may lend money to and transact other business with the Company, and the rights and obligations of the Manager in such transactions shall be the same as those of a person who is not a member or manager. No transactions with the Company shall be voidable solely because the Manager has a direct or indirect interest in the transaction.

3.10 Books and Accounts.

(a) The Company shall maintain books of account to be kept in accordance with generally accepted accounting principles. The books and supporting records of the Company will be maintained at the Company's principal office and may be examined by the Company's certified public accountants as determined by the Manager from time to time.

(b) All of the Company's funds shall be deposited in its name in an account with such bank or banks as the Manager may determine from time to time.

ARTICLE IV
TAXES

4.1 Elections. Subject to Section 4.2, the Manager may make any tax elections for the Company allowed under the Internal Revenue Code of 1986, as amended from time to time (the "**Code**"), or the tax laws of any state or other jurisdiction having taxing jurisdiction over the Company.

4.2 Status. It is the intent of the Member and the Company that the Company is to be disregarded as an entity separate from the Member for purposes of the Code pursuant to Treasury Regulation Section 301.7701-3. Accordingly, no election to the contrary shall be filed by or on behalf of the Company and all income, gain, loss, deduction, and credit of the Company shall be reported by the Member on the Member's federal income tax returns.

ARTICLE V
DISTRIBUTIONS AND ALLOCATIONS

Distributions shall be made to the Member at the times and in the aggregate amounts determined by the Member. Notwithstanding any provision to the contrary contained in this Agreement, the Company shall not be required to make a distribution to the Member on account of its interest in the Company if such distribution would violate the Act or any other applicable law. The Company's profits and losses shall be allocated to the Member.

ARTICLE VI
DISPOSITION OF LLC INTEREST AND ADMISSION OF ASSIGNEES AND ADDITIONAL MEMBERS

6.1 Disposition. The Member's LLC Interest is transferable either voluntarily or by operation of law. The Member, at the Member's discretion, may transfer, gift, pledge or otherwise dispose of all or a portion of the Member's LLC Interest. Upon the disposition of a portion of the Member's LLC Interest, the transferee shall be admitted as a substitute member as to the transferred interest upon the completion of the transfer without further action, unless otherwise agreed. If the Member transfers all of its LLC Interest in the Company, such admission of the transferee as a member of the Company shall be deemed effective immediately prior to the transfer and, immediately following such admission, the transferor Member shall cease to be a member of the Company. Following the disposition of the Member's entire LLC Interest, the Member shall cease to be a member of the Company and shall have no further rights or obligations under this Agreement, except that the Member shall have the right to such information as may be necessary for the computation of the Member's tax liability. Notwithstanding the foregoing, and for the avoidance of doubt, until the payment and performance in full of the Obligations, the Member shall not assign, in whole or in part, its Member Interest without the prior written consent of the Lender.

6.2 Admission of Additional Members. The Member may, in the Member's discretion, admit additional members and determine the capital contributions and the ownership interest of such additional members; provided, however, this Agreement shall be amended and restated to reflect the new and additional terms approved by the Member as a condition to the admission of the additional member.

6.3 Resignation. If the Member resigns, an additional member of the Company shall be admitted to the Company upon its execution of an instrument signifying its agreement to be bound by the terms and conditions of this Agreement, which instrument may be a counterpart signature page to this Agreement. Such admission shall be deemed effective immediately prior to the resignation and, immediately following such admission, the resigning Member shall cease to be a member of the Company.

ARTICLE VII
DISSOLUTION AND WINDING-UP

7.1 Dissolution.

(a) The Company shall be dissolved, and its affairs shall be wound up only upon the first to occur of the following: (i) the written consent of the Member to dissolve the Company, (ii) the termination of the legal existence of the last remaining member of the Company or the occurrence of any other event which terminates the continued membership of the last remaining member of the Company in the Company unless the Company is continued without dissolution in a manner permitted by this Agreement or the Act, or (iii) the entry of a decree of judicial dissolution of the Company under Section 18-802 of the Act. Upon the occurrence of any event that causes the last remaining member of the Company to cease to be a member of the Company or that causes the Member to cease to be a member of the Company (other than upon

continuation of the Company without dissolution upon (i) an assignment by the Member of all of its limited liability company interest in the Company and the admission of the transferee pursuant to this Agreement, or (ii) the resignation of the Member and the admission of an additional member of the Company pursuant to this Agreement), to the fullest extent permitted by law, the personal representative of such member is hereby authorized to, and shall, within ninety (90) days after the occurrence of the event that terminated the continued membership of such member in the Company, agree in writing (i) to continue the Company and (ii) to the admission of the personal representative or its nominee or designee, as the case may be, as a substitute member of the Company, effective as of the occurrence of the event that terminated the continued membership of such member in the Company.

(b) Notwithstanding any other provision of this Agreement, the death, dissolution, bankruptcy, insolvency or incapacity of the Member shall not cause the Company to be dissolved or its affairs to be wound up, and upon the occurrence of such an event, the Company shall not dissolve and shall continue without dissolution.

7.2 Effect of Dissolution; Termination. In the event of dissolution, the Company shall conduct only such activities as are necessary to wind up its affairs (including the sale of the assets of the Company in an orderly manner), and the assets of the Company shall be applied in the manner, and in the order of priority, set forth in Section 18-804 of the Act. The Company shall terminate when (i) all of the assets of the Company, after payment of or due provision for all debts, liabilities and obligations of the Company shall have been distributed to the Member in the manner provided for in this Agreement and (ii) the Certificate shall have been canceled in the manner required by the Act.

ARTICLE VIII
RESERVED

ARTICLE IX
MISCELLANEOUS PROVISIONS

9.1 Governing Law. This Agreement shall be governed by and construed under the laws of the State of Delaware (without regard to conflict of laws principles), all rights and remedies being governed by said laws.

9.2 Amendments. This Agreement may be amended or modified from time to time only by a written instrument executed by the Member; provided however that so long as the Loan remains outstanding, this Agreement may not be amended without the written consent of the Lender.

9.3 Entire Agreement. This Agreement represents the entire agreement between the Member and the Company with respect to the within subject matter.

9.4 Binding Agreement. Notwithstanding any other provision of this Agreement, the Member agrees that this Agreement constitutes a legal, valid and binding agreement of the Member, and is enforceable against the Member in accordance with its terms.

9.5 Rights of Creditors and Third Parties under Operating Agreement. This Agreement is entered into between the Company and the Member for the exclusive benefit of the Company, the Member, and their respective successors and assignees. This Agreement is expressly not intended for the benefit of any creditor of the Company or any other person. Except and only to the extent provided by applicable statute, no such creditor or third party shall have any rights under this Agreement or any agreement between the Company and the Member with respect to any capital contribution or otherwise.

9.6 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which shall constitute one and the same instrument. Counterparts may be executed and/or delivered via facsimile, email (including PDF or any electronic signature complying with the U.S. federal ESIGN Act of 2000, e.g., www.docusign.com) or other transmission method, and any counterpart so executed and/or delivered will be deemed to have been duly and validly delivered and be valid and effective for all purposes.

[signature page follows]

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The undersigned has executed this Amended and Restated Limited Liability Company Agreement effective as of the date first set forth above.

MEMBER:

PARAKEET PROPERTY OWNER II, LLC,
a Delaware limited liability company

DocuSigned by:
By: Bryan Laplant
41A008C2EA77420...
Name: Bryan LaPlant
Title: Authorized Signatory

MANAGER:

PARAKEET HOLDCO II, LLC,
a Delaware limited liability company

DocuSigned by:
By: Bryan Laplant
41A008C2EA77420...
Name: Bryan LaPlant
Title: Authorized Signatory

Schedule 3.4(a)

"**Special Purpose Entity**" shall mean a Person, other than an individual, which, since the date of its formation and at all times prior to, on and after the date thereof, has complied with and shall at all times comply with the following requirements (unless such Person has received prior written consent from Lender to do otherwise):

(a) was, is and will be formed solely for the purpose of (i) in the case of Property Owner, acquiring, developing, owning, holding, selling, leasing, transferring, exchanging, financing, managing and operating its Individual Property, and transacting lawful business that is incidental, necessary and appropriate to accomplish the foregoing; or (ii) in the case of Borrower, owning 100% of the ownership interests in each Property Owner and maintaining the Clearing Account, and transacting lawful business that is incidental, necessary and appropriate to accomplish the foregoing;

(b) has not been, is not, and will not be engaged in any business unrelated to (i) in the case of Property Owner, acquiring, developing, owning, holding, selling, leasing, transferring, exchanging, financing, managing and operating its Individual Property, and transacting lawful business that is incidental, necessary and appropriate to accomplish the foregoing, or (ii) in the case of Borrower owning 100% of the ownership interests in each Property Owner and maintaining the Clearing Account, and transacting in lawful business that is incidental, necessary and appropriate to accomplish the foregoing;

(c) has not had, does not have and will not have any assets other than (i) in the case of Property Owner, those related to the Property, or (ii) in the case of Borrower, those related to the ownership interests of each Property Owner and the Clearing Account;

(d) has not engaged, sought or consented to, and will, to the fullest extent permitted by law, not engage in, seek or consent to, (i) any dissolution, winding up, liquidation, consolidation, merger, or sale of all or substantially all of its assets (other than a sale of the Property resulting in the simultaneous repayment of all of the Debt) and provided that the foregoing shall not prohibit the distribution of funds by Borrower to the Sole Member to the extent not otherwise prohibited by the Loan Documents, (ii) except as permitted under the terms of this Agreement, any transfer of partnership or membership interests (if such entity is a general partner in a limited partnership or a member in a limited liability company), or (iii) except as permitted under the terms of this Agreement, any amendment of its limited partnership agreement, articles of incorporation, articles of organization, certificate of formation or operating agreement (as applicable) with respect to the matters set forth in this definition without the written consent of Lender;

(e) has been, is and intends to remain solvent and has paid and intends to continue to pay its debts and liabilities (including, as applicable, shared personnel and overhead expenses) from its assets as the same have or shall become due, provided that there exists sufficient cash flow from the Property to do so, and has maintained, is currently maintaining and intends to maintain adequate capital for the normal obligations reasonably foreseeable in a business of its size and character and in light of its contemplated business operations; provided, however, the foregoing shall not require any member of Borrower or Property Owner to make any capital contributions;

(f) has not failed, and will not fail, to attempt to correct any known misunderstanding regarding the separate identity of such entity;

(g) has maintained and will maintain its accounts (except with respect to the Clearing Account which is held in the name of Borrower), books and records separate from any other Person and has filed and will file its own tax returns, except to the extent that it (i) has been or is required to file consolidated tax returns by law, (ii) only files an information return, or (iii) is treated as a disregarded entity for federal or state tax purposes;

(h) has maintained and will maintain its own records and books;

(i) other than as provided in this Agreement, (i) has not commingled, and will not commingle, its funds or assets with those of any other Person (except with respect to the Clearing Account which is held in the name of Borrower and which commingles revenue collected from each Individual Property pursuant to Section 2.6 below) and (ii) has not participated and will not participate in any cash management system with any other Person;

(j) has held and will hold its assets in its own name;

(k) has conducted and will conduct its business in its name or in a name franchised or licensed to it by an entity other than an Affiliate of Borrower, except for services rendered under a business management services agreement with an Affiliate that complies with the terms contained in Subsection (x) below, so long as the manager, or equivalent thereof, under such business management services agreement holds itself out as an agent of Borrower or Property Owner, as applicable;

(l) has maintained and will maintain its financial statements, accounting records and other entity documents separate from any other Person and has not permitted, and will not permit, its assets to be listed as assets on the financial statement of any other entity except as required by an Acceptable Accounting Method; provided, however, that any such consolidated financial statement shall contain a note indicating that its separate assets and liabilities are neither available to pay the debts of the consolidated entity nor constitute obligations of the consolidated entity;

(m) has paid and, provided that there exists sufficient cash flow from the Property to do so, will pay its own liabilities and expenses, including the salaries of its own employees (if any), out of its own funds and assets in light of its contemplated business operations; provided, however, that the foregoing shall not require any member to make any capital contributions to Borrower or Property Owner;

(n) has not had and will not have, any indebtedness other than Permitted Indebtedness;

(o) with respect to Borrower, except in connection with the Loan Documents, has not assumed or guaranteed or become obligated for, and will not assume or guarantee or become obligated for, the debts of any other Person and has not held out and will not hold out its credit as being available to satisfy the obligations of any other Person except as permitted pursuant to this Agreement;

(p) with respect to Borrower and Property Owner, has not acquired and will not acquire obligations or securities of its partners, members or shareholders or any other Affiliate;

(q) has allocated and will allocate, fairly and reasonably, any overhead expenses that are shared with any Affiliate, including paying for shared office space and services performed by any employee of an Affiliate or if such invoices for such services are not allocated and separately billed to each entity, fail to have a system in place that provides that the amount thereof is to be allocated among the relevant parties and will be reasonably related to the services provided to each such party;

(r) except with respect to the Clearing Account, which is held in the name of Borrower, has maintained and used, now maintains and uses, and will maintain and use, separate invoices and checks bearing its name, and all invoices, and checks utilized by such Person or utilized to collect its funds or pay its expenses have borne and shall bear its own name and have not borne and shall not bear the name of any other entity unless such entity is clearly designated as being such Person's agent;

(s) has not pledged and will not pledge its assets for the benefit of any other Person other than Lender;

(t) has held itself out and identified itself, and will hold itself out and identify itself, as a separate and distinct entity under its own name or in a name franchised or licensed to it by an entity other than an Affiliate of Borrower and not as a division or part of any other Person, except for services rendered under a business management services agreement with an Affiliate that complies with the terms contained in Subsection (x) below, so long as the manager, or equivalent thereof, under such business management services agreement holds itself out as an agent of Borrower;

(u) has maintained and will maintain its assets in such a manner that it will not be costly or difficult to segregate, ascertain or identify its individual assets from those of any other Person;

(v) has not made and will not make loans to any Person or hold evidence of Indebtedness issued by any other Person or entity (other than cash and investment-grade securities issued by an entity that is not an Affiliate of or subject to common ownership with such entity);

(w) has not identified and will not identify its constituent members, or any Affiliate of any of them, as a division or part of it, and has not identified itself, and shall not identify itself, as a division of any other Person;

(x) other than the Management Agreement, has not entered into or been a party to, and will not enter into or be a party to, any transaction with its constituent members or Affiliates except (i) in the ordinary course of its business and on terms which are intrinsically fair, commercially reasonable and are no less favorable to it than would be obtained in a comparable arm's-length transaction with an unrelated third party, and (ii) in connection with this Agreement;

(y) has not had and will not have any obligation to indemnify, and has not indemnified and will not indemnify, its members, officers, directors, managers, as the case may

be, unless such an obligation was and is fully subordinated to the Obligations and will not constitute a claim against the Obligations in the event that cash flow in excess of the amount required to pay the Obligations is insufficient to pay such obligation;

(z) except as provided in the Loan Documents, does not and will not have any of its obligations guaranteed by any Affiliate;

(aa) [intentionally omitted];

(bb) [intentionally omitted];

(cc) [intentionally omitted];

(dd) [intentionally omitted];

(ee) [intentionally omitted];

(ff) has complied and will comply with all of the material terms and provisions contained in its organizational documents;

(gg) the statement of facts contained in its organizational documents are true and correct;

(hh) has and will have an express acknowledgment in its organizational documents that Lender is an intended third-party beneficiary of the "special purpose/separateness/bankruptcy remote" provisions (as applicable) of such organizational documents; and

(ii) has not and will not consent to any other Person (i) operating its business in the name of such Person, (ii) acting in the name of such Person, (iii) using such Person's business forms, (iv) holding out its credit as being available to satisfy the obligations of such Person (except with respect to Borrower's general partner holding out its credit on behalf of Borrower solely by virtue of being a general partner of a limited partnership), (v) having contractual liability for the payment of any of the liabilities of such Person (except pursuant to the limited extent provided under the Loan Documents), or (vi) failing to at all times specify to all relevant third parties that it is acting in a capacity other than as the applicable Special Purpose Entity.